
Opinion of Miller, J., dissenting.

public concern, and regards the administration of justice; and because there is no other remedy.*

Cases are found also in many of the courts of the States. Among the more recent are three cases in California;† in New York;‡ in Pennsylvania, Virginia, and Alabama. In several of the cases the remedy failed, as in *Ex parte Burr*, *Secombe*, and *Tillinghast*, the court having held, in the cases, that the questions involved were of judicial discretion. But the proceeding is admitted to be the recognized remedy when the case is outside of the exercise of this discretion, and is one of irregularity, or against law, or of flagrant injustice, or without jurisdiction.

It will be seen that this opinion is wholly irrespective of the merits of this unhappy controversy between the relator and Judge Fisher, as the view we have taken of the case does not in any respect involve this question. We can only regret the controversy, as between gentlemen of the highest respectability and honor, and express the hope that reflection, forbearance, and the generous impulses that eminently belong to the members of their profession, may lead to their natural fruits,—reconciliation and mutual and fraternal regard.

Our conclusion is, that a peremptory writ of

MANDAMUS MUST ISSUE.

Mr. Justice MILLER, dissenting.

I am of opinion that this court has no jurisdiction of the case in which it has just ordered the writ of mandamus to issue.

There are in the reports of our decisions three applications before this for the writ of mandamus to be issued by this court to restore attorneys to places at the bar from which they had been expelled by Federal courts. The first of these is

* White's case, 6 Modern, 18, per Holt; Leigh's case, 3 Id. 335; S. C. Carthew, 169, 170.

† People v. Turner, 1 California, 143, 188, 190.

‡ People v. Justices, 1 Johnson's Cases, 181.